

【26年-KOL】 Standard Terms And Conditions For Social Media Promotion Services (TEMPLATE)

• Standard Terms And Conditions For Digital Marketing Services

This Standard Terms And Conditions (**the "Standard Terms"**) constitute an integrated part of all Insertion Orders (**the "IO"**) between Comets International Limited ("**Advertiser**") and please fill in REAL NAME or Company Name on behalf of (please fill in the promoted channel link) ("**Publisher**"). Publisher is required to have their own accounts on [please fill in channel platform e.g., YouTube]. The Standard Terms and IO are collectively referred to herein as the "**Agreement**". In the event of a contradiction between the provisions of this Standard Terms and the IO, the provisions of the IO shall prevail.

- 1. Definitions.** Unless otherwise specified, capitalized terms used in this Agreement have the meanings given to such terms in this Section 1.

Associated Company means a company which, directly or indirectly through one or more intermediaries, controls or is controlled by, or is under common control with a party. For this purpose "control" means the direct or indirect ownership of in aggregate fifty percent or more of voting capital.

Client means **Advertiser'** s client.

Services means the digital marketing services or other related services identified in the IO and any other relevant services or improvements as requested by Advertiser.

Confidential Information means any confidential or proprietary information and data of the Disclosing Party or its Associated Companies, disclosed to the Recipient or its Representatives in connection with this Agreement, whether disclosed before or after the

Effective Date and whether disclosed electronically, orally or in writing or through other methods made available to the Recipient or its Representatives.

• **Other Promotion Models** including but not limited to:

Materials means materials of any type used under this Agreement from Advertiser or Client, including but not limited to video, photo, picture, sound, text, possible mobile web link, and/or graphic file or file of such other format to be displayed for the purpose of digital marketing.

Disclosing Party means the Party disclosing or providing Confidential Information (either directly or through such Party's Representatives) to the Recipient or the Recipient's Representatives.

Recipient means the Party receiving the Confidential Information (either directly or indirectly through such Party's Representatives) from the Disclosing Party or the Disclosing Party's Representatives.

Intellectual Property Rights means on a worldwide basis, any and all now known or hereafter known (i) rights associated with works of authorship including copyrights and moral rights, (ii) trademark and trade name rights and similar rights, (iii) trade secret rights, (iv) patent rights and other industrial property rights, (v) intellectual and industrial property rights of every other kind and nature and however designated, whether arising by operation of law or otherwise, and (vi) all registrations, applications, renewals, extensions, continuations, divisions, or reissues thereof now or hereafter existing, made, or in force (including any rights in any of the foregoing).

Law means any statute, treaty, ordinance, rule, regulation, permit, order, writ, injunction, judicial decision, decree, code or other legally binding requirement of any Governmental Authority that may be in effect from time to time.

Representatives means, with respect to a particular Party, any individuals (e.g. Associated Companies; officers, directors and employees; attorneys, accountants and financial advisors) who is authorized by such Party shall be obligated to observe and perform the confidentiality obligations regarding the regulations or specifications in this agreement. .

Volume means the inventory delivered by Publisher (e.g., impressions, clicks, installations or other desired actions or other amounts of data specified in the IO.).

CPM(Cost Per Mille) means a pricing model that the payments are calculated and made for each one thousand impressions. For this purpose, “impressions” means a measure of the number of times a Creative is seen. Without prejudice to any other terms of this Agreement, an impression occurs each time a visitor hits to a selected website or site, and this will be counted as an impression.

2. Responsibility and Rights of Parties.

2.1 Advertiser shall pay the fee to Publisher in accordance with terms stipulated in Section 3 and IOs on the condition that Publisher accomplishes and obeys all its duties and obligations set forth hereunder.

2.2 Publisher shall provide and complete the Services at the time requested by Advertiser and achieve the service results(if any) as set out in IOs to this Agreement.

2.3 Advertiser reserves the right to request Publisher to retract or remove certain content exposure (including any Services, work product, share links, social media posts, press releases, etc.) from designated distributing platforms if the exposure is detrimental to the reputation of Client, its affiliates, and/or Client’ s product. Publisher shall promptly act to diminish any potential negative impact on Client.

If Publisher’ Service contains rumors, sensitive/confidential information, or defamatory/controversial content that harms Client or Client’ s product, Advertiser may require Publisher to promptly delete the published Services and clear the impact within a limited time.

2.4 *IO Details.* From time to time, the Parties may sign new IOs subject to the terms of this Agreement. As applicable, each IO will specify: (i) the details of Services projects, (ii) the service fee, (iii) the Services content, (iv) the Commencement Date and end date of the project, and (v) licence(if any). Other items that may be included are, but are not limited to reporting requirements, any Services delivery scheduling and specifications concerning ownership of data collected. Revisions to confirmed IOs will be made in writing (which, unless otherwise specified, for purposes of this Agreement, will include paper, fax, or e-mail communication) and acknowledged by both parties in writing.

2.5 *Prohibited Content*. Publisher’ s account shall not contain the following content:

- (i) any content that contains or promotes concepts that are hateful or disparaging towards any race, religion, gender, sexual orientation or nationality;
- (ii) any content that promotes firearms, bombs and other weapons or how-to guides for any of the above; (iii) any content that contains or promotes illegal activities, including, but not limited to hacking, phreaking and online gambling;
- (iv) any content that contains or promotes pornography or graphic sexual depictions;
- (v) any content that contains, promotes or links to indecent, obscene or highly explosive subject matter;
- (vi) any content that facilitates or promotes illegal file-sharing (MP3s, copyright protected video, or the equivalent that Publisher does not have actual knowledge of);
- (vii) any adult-oriented content, including without limitation to, sexually suggestive content, images containing exposed skin and nudity, dating services, international bride services, and adult merchandise, unless permitted under applicable law and Publisher obtains prior written authorization from Advertiser; or
- (viii) any computer viruses, worms, software bombs or similar items) (collectively referred to as the “Prohibited Content”).

3. Payments, Taxes and Costs.

3.1 The service fee will be solely based upon the Insertion Order.

3.2 *Invoices*. Unless otherwise specified in the IO or **Advertiser** has prepaid, Publisher will issue the valid original invoices within [3 working days] from the date of the final acceptance of the video. The valid original invoices will be sent to **Advertiser’** s billing address as set forth on the IO.

3.3 *Payments*.

Account Name	
Account Number	
Beneficiary Bank Name	
Beneficiary bank address	
Swift Code	

IBAN	
Remittance Information (optional)	For Further credit to:

Or

Paypal UserName	
Paypal Email Address	
Transfer Note (optional)	
Remittance Information (optional)	For Further credit to:

The Publisher shall provide accurate and complete beneficiary account information, along with necessary intermediary-bank information (if any). The Publisher is responsible for any failed payments or additional charges arising from incorrect or missing information.

3.4 Taxes, Costs. Each party shall be liable for any and all of its own applicable government taxes, or other levies in connection with the production and delivery of the advertisements under this Agreement.

3.5 Wire transfer fees. Both parties agree to choose the following () to determine the responsibility of wire transfer fees:

- (i) Advertiser and Publisher jointly are liable for wire transfer fees or other transfer fees.
- (ii) Advertiser shall be liable for any wire transfer fees or other transfer fees of both parties.
- (iii) Publisher shall be liable for any wire transfer fees or other transfer fees of both parties.

No matter who will be liable for wire transfer fees, in the event that the account information provided by Publisher are incorrect and result in payment failure, Publisher shall be responsible for any incurred wire transfer fees. Advertiser will deduct this incurred wire transfer fees from the repayment.

3.6 Publisher must ensure that the account information for receiving payments in this Agreement and invoice is consistent and valid. Any discrepancies that affect the timeliness of

payment shall be Publisher's responsibility, and Advertiser shall not hold any liability for delays caused by such discrepancies.

3.7 Late Payment, In the event that the Advertiser is late in providing payment to the Publisher, the Publisher is entitled to halt the services and the accrued interest will be imposed on the Advertiser at a rate of 0.3% per day until such outstanding funds owing and due are paid by the Advertiser.

3.8 In the following event, Advertiser is entitled to deduct the corresponding proportion of the final payment.

(i) Publisher is late in providing the finalized video without informing the reasons 5 working days in advance; or

(ii) Publisher is unable to modify the Services or refuse to modify as Advertiser 's requirements.

4. Warranties.

4.1 Warranties. Both parties hereby represent that they are authorized to enter into this Agreement. Except as expressly set forth in this Agreement, neither party makes and each party specifically disclaims any representations or warranties, express or implied, including any warranty of merchantability, fitness for a particular purpose, title and non-infringement, and warranties implied from course of dealing or performance.

4.2 Advertiser 's Representations. Advertiser represents and warrants that: (i) All trademark, logo, Materials, applications, computer systems and services on Advertiser, are legal to distribute, and Advertiser owns or has the legal right to use in accordance with this Agreement, and any trademark, logo, Materials, applications, or computer systems will not infringe upon any Intellectual Property Rights or other proprietary rights of third parties; (ii) no Materials will contain any offensive material, including without limitation, adult content, adult banners, or Prohibited Content. ; (iii) applications, computer systems and services on Advertiser, are free of any "worm", "virus", "malware" or other device that could impair or injure any person or entity; (iv) Advertiser conducts its business in compliance with all applicable laws, rules and regulations; and (v) the execution of this Agreement and the performance of its obligations hereunder will not conflict with or cause a breach or violation of any agreement, law, regulation or other obligation to which Advertiser is a party or subject. Advertiser agrees to hold harmless, defend and indemnify Publisher and its Associated Companies, and their respective officers,

directors, shareholders, employees, agent and other Representatives, against any claims arising out of any breach of this Agreement or applicable law.

4.3 Publisher's Representations: Publisher agrees to hold harmless, defend and indemnify Advertiser and its Associated Companies, and their respective officers, directors, shareholders, employees, agent and other Representatives, against any claims arising out of any breach of this Agreement or applicable law.

5. Intellectual Property Rights

5.1 In any case Publisher provides the Services of advertising material creating (including but not limited to writing, video, audio, art material, etc.), livestreaming, Publisher confirms and ensures that it has the rights or has obtained the license from the third party to grant Advertiser and Client royalty-free, irrevocable right on a worldwide basis to use and display the facial likeness, voice, appearance in work products, without paying additional fees to Publisher.

5.2 Publisher shall guarantee its Services will not infringe, violate, or misappropriate any Intellectual Property Rights of any third party. In the event of any claim concerning the Intellectual Property Rights of a third party that would prevent or limit Advertiser and Client's use of the Services, Publisher will indemnify, defend, and hold harmless Advertiser and Client from and against all taxes, losses, damages, liabilities, costs, and expenses, including attorneys' fees and other legal expenses.

5.3 Advertiser and Publisher shall jointly own the final delivered Work. Publisher shall solely use the Work for the Permitted Purpose. Publisher shall have the right to edit and modify the Work. Should the Client have any reserved rights or other agreements regarding the intellectual property, the Client's intellectual property clauses shall take precedence.

6. Term and Termination

6.1 **Term.** This Agreement shall be effective as of the Effective Date and shall be effective for a term of [2] months unless earlier terminated in accordance with its terms (the **"Initial Term"**).

If the Service project is not fully executed when the Agreement term expires, both parties shall continue to fulfill the remaining unfinished obligations, but no new IO shall be added.

During the agreement Term, both parties may collaborate on multiple orders, and a new IO shall be signed for each new order. To avoid any confusion, Advertiser does not guarantee the number and frequency of IO orders during the cooperation period.

6.2 Termination. Each Party acknowledges and agrees that this Agreement may be terminated by the mutual written agreement of the Parties. Either Party may terminate this Agreement upon the material breach of this Agreement by the other Party hereto if the breaching Party fails to cure the breach within 30 days after receiving written notice of such breach from the non-breaching party. The termination of this Agreement will not affect any liability or obligation of either party incurred prior to the termination date.

6.3 Advertiser is entitled to have the right to dissolve the contract in the following circumstances:

- (i) Publisher does not maintain an appropriate reputation and thus driving down the project's evaluation
- (ii) Publisher assigns contract rights and obligations to others without consent of Advertiser.
- (iii) Whenever the Advertiser considers it is necessary to exercising the right to dissolve the contract.

The Advertiser is entitled to terminate the Agreement in written notice, the date of arrival of the notice has the effect of terminating the contract. Advertiser is exempt from any liability arising from this, and entitled to refuse to compensate Publisher's work after termination of contract.

Advertiser has a reasonable claim for payment of 10% of the liquidated damages in this Agreement and other losses in the circumstances (i)(ii).

7. Confidentiality.

7.1 The Parties hereby agree that in receiving Confidential Information pursuant to this Agreement, it shall (a) use the Confidential Information only to fulfil its obligations pursuant to this Agreement; (b) treat all Confidential Information of the disclosing party as secret and confidential and shall not copy or disclose any such Confidential Information to any third party; (c) not, without the written consent of the disclosing party, disclose the Confidential

Information or any part of it to any person except to the receiving party's directors, employees, parent company, subsidiaries or agreed subcontractors, who need access to such Confidential Information for use in connection with the Services and who are bound by appropriate confidentiality and non-use obligations; and (d) comply promptly with any written request from the disclosing party to destroy or return any of the disclosing party's Confidential Information (and all copies, summaries and extracts of such Confidential Information) then in the receiving party's power or possession.

7.2 For clarifying, Confidential Information shall also include but is not limited to the following:

- (i) unpublished information on materials and game versions provided by Advertiser's Client;
- (ii) the existence, contents and terms of this Agreement and Insertion Order(s); and
- (iii) Information about reward, fee, prize, bonus during the performance of this Agreement.

7.3 Exceptions

Confidential Information shall not include any information which the Recipient demonstrates by clear and convincing evidence is:

- (i) at the time of disclosure in the public domain or thereafter enters the public domain without any breach of this Agreement by the Recipient or any of its Representatives;
- (ii) known by the Recipient before the time of disclosure, other than as a result of a prior disclosure by the Disclosing Party or its Associated Companies or the Disclosing Party's Representatives;
- (iii) obtained from a third party who is in lawful possession of same and does not thereby breach an obligation of confidence to the Disclosing Party regarding such information;
- (iv) developed by or for the Recipient or its Representatives through their independent efforts without use of Confidential Information; provided that.

In each of the foregoing clauses (i) through (iv), no combination of features shall be deemed to be within the foregoing exceptions merely because individual features are publicly known or in the Receiving Party's possession, unless the particular combination itself and its principle of operations are in the public domain or in the Receiving Party's possession without the use of or access to Confidential Information. The material terms of this Agreement are deemed to be Confidential Information of each Party.

8. Force Majeure.

Neither party will be liable for a delay or default in the performance of its respective obligations under this Agreement (except for the payment of inventory delivered) if such delay or default is caused by the Event of Force Majeure (“*Event of Force Majeure*” hereinafter means an earthquake, typhoon, floods or other acts of God, fire, explosion, strike, action of governmental or military authority, upheaval, riot, war or any other major emergency that is unforeseeable and unavoidable). If an Event of Force Majeure constitutes for a period of five (5) Business Days, either party has the right to cancel the relevant IO without penalty.

9. Breach of Contract

In the following event, Publisher constitutes a breach of this Agreement. Advertiser has the right to terminate this Agreement, request Publisher to refund all the fees paid by Advertiser, and demand Publisher pay the liquidated damages in an amount equal to five (5) times the amount of the IO. If the liquidated damages are not sufficient to compensate for the losses suffered by Advertiser (including but not limited to the costs incurred by Advertiser in compensating Advertiser's client, attorney fees, litigation fees, auction fees, appraisal fees, travel expenses, etc.), Advertiser may still recover from Party B:

- (i) without the written consent of Advertiser, disclose the confidential information;
- (ii) fails to respond to Advertiser, either by way of electronic mail or other forms of messaging or any other medium as agreed by the parties, for a consecutive period of seven (7) calendar days;
- (iii) If the Publisher is unable to provide the required services to the Advertiser and its clients in a timely manner, they must promptly communicate with the Advertiser to request an extension. The specific extension period will be determined based on the written notice or other formal documentation provided by the Advertiser. If the Publisher still fails to provide the Services within the extended period;
- (iv) without prior written confirmation of Services from Advertiser, publish the Services;
- (v) refuses to improve/modify the works/Services at Advertiser's reasonable requests; or
- (vi) provides the Services content contains false/defamatory/controversial information (including but not limited to acts and/or statements that are unlawful, tortious, defamatory, obscene, invasive of privacy, threatening, harassing, abusive, hateful, or racist) that cause serious reputation impact or economic losses to Client.

10. General.

10.1 Notices. All notices, modifications, instructions, demands, consents, approvals and other communications to be given or delivered under or by reason of the provisions of this Agreement

by either Party shall be in writing and shall be deemed to have been given: (a) when personally delivered; (b) when delivered by an internationally recognized courier service; (c) when sent by email to the Contact Person specified in the IO; or (d) when sent by facsimile to the number specified in the IO and appropriate confirmation is received. Notices, instructions, demands, consents, approvals and other communications to the Parties will be sent to the relevant addresses set forth on the signature page, and a copy thereof shall be also sent to the attention of the “Legal Department” at the same address. A Party may change its notice address and contact person by giving written notice to the other Party in the manner provided for in this Section 10.1. All notices and other communications required or otherwise provided under this Agreement shall be made in English.

10.2 *Waiver.* No waiver of any of the provisions of this Agreement shall be valid unless in writing signed by the Party against which the waiver is sought to be enforced. No waiver by either party of any breach of or failure of performance shall be deemed a waiver as to any subsequent breach or failure of performance, whether or not similar, nor shall any waiver constitute a continuing waiver. Failure of a Party to enforce any provision or to exercise any right or remedy shall not constitute a waiver of such Party’ s rights or the other Party’ s obligations.

10.3 *Assignment.* Either Party may not directly or indirectly assigns or otherwise transfers its rights or obligations under this Agreement in whole or in part without the express written consent of the other Party. Any assignment or transfer or attempt to assign or transfer of this Agreement or the rights granted herein without the written consent of the other Party shall be void.

10.4 *Governing Law.* This Agreement and any dispute, controversy or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with the laws of China(except Hong Kong, Macao and Taiwan).

10.5 *Dispute Resolution.* Any dispute arising or in connection with this Agreement will be resolved through friendly consultation between the parties. In case no settlement can be reached, the disputes will be submitted to the Guangzhou Arbitration Commission (GZAC), which shall be conducted in accordance with the GZAC's arbitration rules in effect at the time of applying for arbitration. The arbitral award is final and binding upon both Parties. The language to be used in the arbitral proceedings shall be Chinese.

10.6 *Governing Language.* This Agreement is executed in English. If necessary, it may be translated into other languages. However, if there’ s any conflict, ambiguity or discrepancy between the English version and a version in any other language, the English version shall prevail.

10.7 *Counterparts.* This Agreement may be executed in multiple counterparts, each of which will be considered to be an original, but all of which together will constitute one and the same instrument.

10.8*Headings.* The section headings appearing in this Agreement are inserted only as a matter of convenience and in no way define, limit, construe or describe the scope or meaning of this Agreement or any portion hereof.

10.9 *Entire Agreement.* This Agreement (together with the applicable IOs) constitutes the entire agreement between the parties concerning the subject matter hereof. This Agreement replaces and fully supersedes any prior verbal or written understandings, communications, or representations between the parties.

11. **Applicability.**

To fully complete this Standard Terms, the parties shall further sign an individual IO to specify their order information in details. Without an effective IO, this Standard Terms itself does not have any binding effect upon the Publisher.

Comets International Limited	[please fill in REAL NAME or Company Name]
Signature: _____	Signature: ____
Name: _____	Name: _____
Title: <u>Influencer Manager</u>	Title: _____

Date: <u>XXX, 2024</u>	Date: <u>. XXX, 2024</u>
Unit 04-05, 16th Floor, The Broadway No. 54-62 Lockhart Road, Wanchai, Hong Kong	

Insertion Order

This Insertion Order (“**this IO**”) relates to the services to be provided under the Standard Terms And Conditions For Digital Marketing Services which is entered by and between [Please fill in REAL NAME or Company NAME on behalf of (<https://www.youtube.com/xxx>)] (“**Publisher**”) and [Comets International Limited] (“**Advertiser**”) with an effect as of [Date], 2024(“**the Agreement**”).

All defined terms in this IO will have the same meaning as in the Agreement unless this IO expressly states otherwise. If there is any conflict between this IO and the Agreement, this IO will take precedence.

1. Campaign Period: [Date], 2024 to [Date], 2024.
2. Campaign Details:

Project Name:	
Service Provider Name:	Please fill in influencer channel name or id
Start Date:	
End Date:	
Purpose:	The video will help to promote: 1. New version updates 2. New character can be obtained
Services/ Deliverables:	1. Provide a written script of initial ideas for the video before making the video/streaming

	2. Post a dedicated landscape video on YouTube channel. The video should be about [the promoted product name or campaign name]. 3. Put the correct game name, call-to-action (CTA), and tracklink which the Brand offers at the top of the video description box or channel bio. 4. Relevant introduction with hashtag of #xxxx in the description box of the video. 5. Stream: Provide screenshots of [Twitch] analytics within 2 days of streaming for acceptance purposes. 6. In the event of unfavourable branding, the publisher will need to work with the brand for removal.
Format:	Dedicated video Or Integrated video
Release Date	Please upload the video between November 15th and November 20th
Language:	French
Publishing Platform:	Youtube
Channel Link:	https://www.youtube.com/xxxxxxx
Length of Video:	(example only) Integrated part at least 2 minutes Youtube Video at least 10 minutes Tiktok Video no longer than 90 seconds Stream 2 hours
License Period:	Please fill in license period here if needed
License Price:	Please fill in license fees here if needed
Project Total Fees:	Please fill in fees here

* The service fee agreed upon by both parties includes all the above-mentioned Campaign Details requirements. Any other fees shall also be proposed and negotiated before the project begins.

*The License Period shall be counted from the second day of the post of each video or other time period confirmed by the parties by email.

* The License stated in this IO shall mean: Publisher shall give Advertiser the license of the right to use the video and/or other relevant materials (including but not limited to the right to modify, online publicly display and distribute through online information network and platforms such as YouTube, Google Display Network, Facebook, Instagram. Facebook Audience Network, etc. and social post on a global scale) during the License Period for the purpose of marketing or user acquisition.

3. The Advertiser will provide the Publisher with URL links with tied to landing page. The Publisher should insert to the Content URL link provided by the Advertiser.

4. The Content created by the Publisher shall not be deleted from the channel within 1 (one) year from the date of its launching (publication) excluding blocking of the video on the channel and deleting of the channel.

5. The payment under this IO shall be made by one installment. The payment of 100% shall be made within [60/45] working days after the video is released, accepted by the Client, and upon receipt of the invoice.

6. *Additional fee.* Advertiser has the right to inquire about the process of Services and provide modification/improvement advice 3(three) times. Publisher shall complete the modifications/improvements required by Advertiser within the time specified. The modifications/improvement can be considered passed only after being confirmed by Advertised. If the number of modification/improvement advice exceeds 3(three) times, Advertiser will pay Publisher the additional fees as agreed by both parties. Advertiser does not need to pay any additional fees to Publisher for modifications/improvement that occur within the agreed number of times.

EXECUTED by duly authorized representatives of the parties:

For and on behalf of Comets International Limited Signature_____ Date: 2024.11.13	For and on behalf of [REAL NAME or Company Name] Signature_____ Date: 2024.11.13
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